

1.

CASE #	CASE NAME	HEARING NAME
RIC1412729	LAW OFFICES OF GARY A BEMIS VS CANSINO	MOTION FOR ORDER THAT RENEWAL OF JUDGMENT WAS TIMELY FILED

Tentative Ruling: Granted.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2600697	FEDEX VS CASTANEDA	MOTION FOR ISSUANCE OF NUNC PRO TUNC ORDER BY FEDEX

Tentative Ruling: Granted.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2400859	WHITLEY VS AARON CHRYSLER DODGE JEEP RAM	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION ON COMPLAINT FOR OTHER CONTRACT OF ZACHARY WHITLEY

Tentative Ruling: Granted. Defendants shall submit a proposed judgment within fourteen (14) days of this Order. The Court VACATES the trial readiness conference, currently set for September 4, 2026, and the OSC and court trial, currently set for September 11, 2026. The Court sets an OSC re receipt of judgment for August 20, 2026, at 8:30 a.m.

Defendant's Initial Burden

A defendant has met his or her burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to that cause of action. (CCP §437c(p)(2).) Once the defendant has met that burden, it shifts to plaintiff to show that a triable issue of material fact exists as to that cause of action or defense thereto. (CCP §437c(p)(2).) The moving party must meet its initial burden regardless of whether the opposing party files counter-declarations. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850; *Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.) Where a defendant fails to meet its burden, the motion must be denied; plaintiff need not make any showing at all. (*Id.*)